AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

25/05/2023 - Listing Notice

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Listing Notice
To	
CC	

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice
Message	Dear Sir/Madam Please find attached a Listing Notice in this matter. Please note that generally listings information is publicly available. Yours sincerely
Sent By	Natalie D s47E(c)
Date	25/05/2023
Time	4:34PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
25/05/2023	2023-272935	Listing Notices	Listing Notice	Commissioner of the NDIS Quality and Safeguards Commission		1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

National Disability Insurance Scheme Division

Our Ref: 2023/3361; 2023/3363; 2023/3364 Contact Officer: Natalie D

25 May 2023

Commissioner of the NDIS Quality and Safeguards Commission
PO Box 210
PENRITH NSW 2750

Sent by email only

Dear Sir/Madam

APPLICANT: Vida Reid, Simon Reid and Forward Focused Group Pty Ltd
RESPONDENT: Commissioner of the NDIS Quality and Safeguards Commission

This application has been listed as shown below:

Case Management Directions Hearing by telephone

Date: Thursday, 8 June 2023
Time: 10:00AM
Location: By telephone

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Natalie D
For the Registrar

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

26/05/2023 - Notice of Application

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Tribunal Officer
Standard Text	
Subject Description	Notice of Application
To	
CC	

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Notice of Application
Message	Dear Sir/Madam Please find attached notice of an application for review of a decision under section 29 of the Administrative Appeals Tribunal Act 1975. The Tribunal notes that a Case management Directions Hearing has been listed on 8 June 2023. If there is insufficient time to prepare and file the T-Documents by this date please advise the Tribunal in writing and we will vacate and re-list the hearing to a later date. Yours sincerely
Sent By	Jessica P s47E(c)
Date	26/05/2023
Time	11:58AM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
26/05/2023	2023-274439	C03 Acknowledging receipt, Notifying other parties, Listing, T documents and Outreach	C03.03F: NDIS application: notice to respondent	Commissioner of the NDIS Quality and Safeguards Commission		1

Received Documents in TRACS

Date Received	Document Type	Received From	Doc No.	File Name	Description
10/05/2023	Application for review	Vida Reid	1/2	23_05_10 - V REID AAT Application Draft.pdf	
10/05/2023	Application for review	Vida Reid	2/2	Cover email - Vida Reid & NDIS Quality and Safeguards Commission - External Review Request.pdf	
10/05/2023	Reviewable decision	Vida Reid	1/1	23_04_21 - Ltr frm NDIS Commission - V REID decision internal review.pdf	

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

National Disability Insurance Scheme Division

Our Ref: 2023/3361 Contact Officer: Jessica P

26 May 2023

Commissioner of the NDIS Quality and Safeguards Commission
PO Box 210
PENRITH NSW 2750

NOTICE OF APPLICATION FOR REVIEW OF DECISION

APPLICANT: **Vida Reid**
RESPONDENT: **Commissioner of the NDIS Quality and Safeguards Commission**

The applicant has applied under the *Administrative Appeals Tribunal Act 1975* (AAT Act) for a review of the decision referred to in the attached copy of the application.

You are a party to this proceeding. You will be notified of the date and place of any conference or other listing.

YOU ARE REQUIRED to lodge a copy of:

(a) a statement setting out the findings on material questions of fact, referring to the evidence or other material on which those findings were based and giving the reasons for the decision; and

(b) every other document or part of a document that is in your possession or under your control and is relevant to the review of the decision by the Tribunal.

YOU ARE REQUIRED to lodge the documents within 28 days after receiving this notice. We would appreciate receiving the documents as soon as possible.

YOU ARE REQUIRED to give a copy of the documents within that period to each other party to the proceeding. We have advised the applicant of this.

In accordance with the AAT's COVID-19 Practice Directions that took effect on 29 April 2020, the documents must be lodged in electronic form via the online document lodgement service to the extent possible. Requirements for preparing the documents are outlined in the AAT Specification for Digital Section 37 Documents on our website.

Please note the Tribunal may direct you to lodge one or more hard copies of the documents at a later date.

Steps in the review

The first step in the review is usually a Case Conference. We will confirm this date in writing later. For more information, see the fact sheet – *What Happens at a Case Conference?*

We will help parties try to reach agreement about how the case should be resolved. If there is no agreement, the application might be listed for a Conciliation and a Hearing, or proceed straight to a Hearing.

Why do we collect information and what do we do with it?

We collect information to process the application and carry out the review under the AAT Act. If you give us information that any other party to the review does not have, we usually give them a copy.

Limited information about a case is usually made available to the public on request and can be accessed using *eCase Search*, our online case search tool. This information includes the names of the parties and any representatives, the type of application, dates of case events, the types of key documents lodged by the parties and the outcome of an application.

More information is usually made publicly available if we hold a hearing and make a decision in the case. Our hearings are usually open to the public and most of our decisions are published on the internet.

We can order that information be kept confidential if we believe there is good reason to do so. You can apply for an order by writing to us stating what you want kept confidential and why. In some cases, legislation requires that information be kept confidential.

For more information, see our fact sheet *Privacy and confidentiality at the AAT* and our Privacy Policy. Our Privacy Policy includes information about how you can access and seek correction of personal information we hold about you, make a complaint about the way we have handled personal information and how we will deal with such a complaint.

The fact sheet and Privacy Policy are on our website, or ask us and we will send them to you.

Getting more information about the application

More information about us and how we conduct reviews is available on our website (www.aat.gov.au).

If you want to check the date and time of a case event or check if a document has been lodged, you should be able to find this and other basic information about the case through our *eCase Search* facility on the website.

Information about a case is usually first made available 7 days after the application has been lodged. Applications subject to confidentiality restrictions are excluded.

If you want any further information or assistance, please phone us on **1800 228 333***.

Yours sincerely

Jessica P
For the Registrar

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

* You will be connected to the AAT office in your capital city. Residents of northern NSW (postcodes 2460–2490) will be connected to the Brisbane office and residents of the Northern Territory will be connected to the Adelaide office. Calls from landlines are free. You may be charged for calls from mobile phones or payphones.

Administrative Appeals Tribunal

Application for Review of Decision (Individual)

This form is for use in the AAT's General Division, Freedom of Information Division, National Disability Insurance Scheme Division, Security Division, Small Business Taxation Division, Taxation & Commercial Division and Veterans' Appeals Division.

Please read the *Guide to applying for review* before completing this form. You must complete the fields and answer the question marked with an asterisk (*).

SECTION 1 APPLICANT (INDIVIDUAL)

Personal details *	Mr ☐ Mrs ☒ Ms ☐ Miss ☐ Other:		
	Family name: **Reid**		
	Given name(s): **Vida**		
	Female ☒ Male ☐ Unspecified ☐	Date of birth	11 / 01 / 1987
	Are you of Aboriginal or Torres Strait Islander origin?	Yes ☐	No ☒
Street address *	**℅ Tom & Co Legal, 45 Delawney Street, BALCATTA**	State: **WA**	Postcode: **6021**
Postal address * 'As above' if also your street address	**As above**	State:	Postcode:
Email	**info@tomandcolegal.com.au**		
Telephone * / Fax	Landline: (**08**) **6255 5737**	Mobile:	Fax: ( )
Preferred method for receiving correspondence Please select one *	Email: ☒	Fax: ☐	Post: ☐

Representative If someone will represent you, please fill in these details	Name: **Mr Tom Monks**		
	Organisation: **Tom & Co Legal**		
	Postal address: **45 Delawney Street, BALCATTA**	State: **WA**	Postcode: **6021**
Email	**info@tomandcolegal.com.au**		
Telephone / Fax	Landline: (**08**) **6255 5737**	Mobile:	Fax: ( )
Preferred method for receiving correspondence Please select one	Email: ☒	Fax: ☐	Post: ☐

Interpreter *	Do you need an interpreter?	Yes ☐ No ☒	If yes, for which language or dialect?	

Turn to page 2 ➔

Assistance	If you have a disability or other special need and would like some assistance, please indicate the type of disability/need and assistance you require:		
	Physical (e.g. wheelchair user)	☐	
	Sensory (e.g. hearing or sight)	☐	
	Other, please specify	☐	

SECTION 2 DECISION

Date you received the decision you want reviewed * 21 / 04 / 2023

Are you sending us a copy of this decision? *		
Yes	☒	Go to section 3 – **attach a copy of the decision**
No	☐	Complete all of section 2, then go to section 3

Briefly describe the decision

Internal review decision of s 100 of the *National Disability Insurance Scheme Act 2013*. Original decision made on 20 December 2022 to issue a 5 year Banning Order against Mrs Vida Reid under s73ZN(2)(a)(i) of the above Act.

Who made the decision? Name and address of organisation

Name:
Sian Leathem, Complaints Commissioner, NDIS Quality & Safeguards Commission

Address:
Level 1, 200 St Georges Terrace, PERTH

State: WA Postcode: 6000

Date the decision was made 21 / 04 / 2023

Decision reference IR (6) 22/23 and ICM 23/99

SECTION 3 REASONS FOR THE APPLICATION

Why do you claim the decision is wrong? * Please read the 'Reasons you are making an application' section in the *Guide to applying for review* before answering this question.

The NDIS Quality and Safeguards Commission failed to provide Mrs Reid with disclosure on allegations made and what evidence was relied on to make the original decision. Mrs Reid was unable to properly address any allegations and was not given the opportunity to work with the Commission during their investigative stage. Mrs Reid provided a submission based on the little evdience made available by the Commission on 20 March 2023 to assist with the internal review process. The Commission refused to give any weight to Mrs Reid's submission. The Banning Order is unfair based on the lack of evidence provided and denying Mrs Reid the opportunity to respond to the allegations made against her.

Turn to page 3 ➔

SECTION 4 TAX DECISIONS ONLY

Please answer both of these questions if you are applying to us for review of a tax decision.

Please refer to the 'Tax Decisions' and 'Application Fees' sections in the *Guide to applying for review* for more information before answering these questions.

1. Does the decision relate to a small business entity?

   Yes ☐

   No ☐

2. Is the amount of tax in dispute less than $5,000?

   Yes ☐

   No ☐

   If yes, please state the amount of tax in dispute:

   $

SIGNATURE

Signature Tom & Co Legal **Date** 10 / 05 / 2023

Print name Tom Monks

* Mandatory field/question

GUIDE TO APPLYING FOR REVIEW

The Administrative Appeals Tribunal (AAT) can review a wide range of decisions made under Commonwealth laws by the Australian Government and some non-government bodies. We also review decisions made under Norfolk Island laws.

You should use this guide if you want to apply for a review of a decision in the AAT's General Division, Freedom of Information Division, National Disability Insurance Scheme Division, Security Division, Small Business Taxation Division, Taxation & Commercial Division or Veterans' Appeals Division.

The five parts of this guide will:

- help you choose which application form to use (Part 1)
- help you complete the application form (Part 2)
- help you work out if you must pay an application fee and, if so, how much (Part 3)
- give you some other information about applying to the AAT (Part 4) and
- show you where to send your form and how to contact the AAT (Part 5).

If you want to apply for a review of a decision in the AAT's Migration & Refugee Division or Social Services & Child Support Division, go to www.aat.gov.au and follow the links on the website.

PART 1: CHOOSING WHICH APPLICATION FORM TO USE

The AAT has three application forms to apply for a review of a decision in the AAT's General Division, Freedom of Information Division, National Disability Insurance Scheme Division, Security Division, Small Business Taxation Division, Taxation & Commercial Division or Veterans' Appeals Division.

Application for Review of Decision (Individual)
Use this form if you are an individual, unless you want to apply for a second review of a decision of the AAT's Social Services & Child Support Division.

Application for Review of Decision (Organisation)
Use that form if you are an organisation.

Application for Second Review of Decision
Use that form if you want to apply for a second review of a decision made by the AAT's Social Services & Child Support Division:

- about a Centrelink decision (except an employer-related paid parental leave decision)
- to refuse an extension of time to apply for a child support review
- about a person's percentage of care for a child in a child support review.

For information about completing this form, see Part 2 of this guide.

PART 2: COMPLETING THE APPLICATION FORM

Read this guide and the form carefully. If you need more space to answer a question, continue your answer on another sheet of paper and attach it to the form.

If you need help filling out the form or if you need more information, ask us. When you have completed the form, you can bring it to the AAT in person or send it to us by post, email or fax. Our contact details are at the end of this guide.

APPLICANT

CONTACT DETAILS

The form asks you to give us your address, phone numbers, and any email addresses or fax numbers. Please tell us your preferred method for receiving written information from us by ticking the box. If you have given us an email address and you do not tick a box, we will email the documents to you.

REPRESENTATIVE

You can represent yourself at the AAT or any person you choose can represent you. If you tell us that you have a representative, we will send the letters and other documents about your case to your representative instead of sending them to you.

INTERPRETER

If you need an interpreter, we will arrange for a qualified interpreter to assist you free of charge.
If you speak a particular dialect, please include this in the form.

DISABILITY

If you have a disability or special need and would like some assistance, we will try to make appropriate arrangements for you. Our offices (known as registries) have portable hearing loops and are wheelchair accessible.

DECISION

DATE YOU RECEIVED THE DECISION

We ask you to tell us on the form when you received the decision. We need this information so we can check if your application has been lodged within the time limit.

The time limit for lodging an application for a review of a decision is usually 28 days after you receive the decision. For some types of decisions, the time limit is longer and for others it is shorter. The time limit is usually stated in the information given to you by the decision-maker about your review rights.

If the time limit has expired, you can apply for an extension of time to make your application. We can extend most, but not all, time limits. You can use the *Application for an Extension of Time for Making an Application for Review of Decision* form which is on our website.

SEND US A COPY OF THE DECISION

If you can, send us a copy of the decision you want us to review. If you cannot, describe the decision briefly, for example: ‘The Tax Office decided that I have to pay a tax debt’.

WHO MADE THE DECISION

If you are not sending us a copy of the decision, you need to tell us the name and address of the department or organisation that made the decision.

DATE THE DECISION WAS MADE AND DECISION REFERENCE

If you are not sending us a copy of the decision, please tell us on the form when the decision was made and to give us a decision reference number. You will usually find a reference number on a covering letter or in the decision itself. Giving us these details helps us to identify the decision quickly.

REASONS YOU ARE MAKING AN APPLICATION

You must tell us briefly why you want to have the decision reviewed. For example, you may think the decision is wrong and a different decision should be made, or the information you provided was not taken into account, or the law was not applied correctly. We cannot start the review if you do not answer this question.

TAX DECISIONS

If you are applying for review of a tax decision, we need additional information to decide how the AAT will handle your application and the application fee you must pay.

If the tax decision relates to a small business entity, we will handle the review in our Small Business Taxation Division. In general, you are a small business entity if you were carrying on a business and your aggregated turnover was less than $10 million. In most cases, the letter from the Australian Taxation Office (**ATO**) telling you about its decision will state whether or not they consider you are a small business entity. For more information, please read the AAT's *Guide to the Small Business Taxation Division* which can be found on our website.

If the decision does not relate to a small business entity, we will handle your review in our Taxation & Commercial Division.

The application fee you must pay depends on:

- the type of tax decision you want us to review, and
- the amount of tax in dispute, and
- whether the decision relates to a small business entity.

Please read the next section to find out what fee you must pay.

PART 3: APPLICATION FEES AND REFUNDS

You do not have to pay a fee when you apply to us for review of some types of decisions, such as applications about Commonwealth workers' compensation, family assistance or social security payments, military compensation, the National Disability Insurance Scheme or veterans' pensions.

For the review of other types of decisions, you must pay an application fee.

STANDARD APPLICATION FEE

The standard application fee is $1,011.

APPLICATION FEES FOR REVIEW OF TAX DECISIONS

A lower fee of $100 is payable for the review of the following tax decisions:

- the amount of tax in dispute is less than $5,000
- the ATO has refused your request to be released from paying a tax debt (regardless of the amount involved)
- the ATO has refused to extend the time for you to lodge an objection.

If the decision relates to a small business entity and you are not eligible to pay the lower fee of $100, the application fee is $543.

For other applications for review of tax decisions, the standard application fee of $1,011 is payable.

CONCESSIONAL FEE

You can pay a reduced fee of $100 instead of the $1,011 fee or the $543 fee if:

- you have been granted legal aid for your application
- you hold a health care card, pensioner concession card or Commonwealth seniors health card
- you are in prison or lawfully detained in a public institution
- you are under 18 years of age or receiving youth allowance, Austudy or ABSTUDY, or
- we decide that paying the full fee would cause you financial hardship.

To apply for a fee reduction on the grounds of financial hardship, you must fill out the *Request for Fee Reduction* form, which is on our website, and send it to us.

APPLICATIONS FOR REVIEW OF MORE THAN ONE DECISION

If the same person (an individual, organisation or other entity) applies for review of more than one decision that relates to them and we decide that the applications can be dealt with together, we can order that you only have to pay one fee.

If you are applying for review of more than one tax decision and different application fees would be payable if the applications were handled separately, you must usually pay the highest of the fees. However, if one of the fees is the $1,011 fee and the other is the $543 fee, you pay the $543 fee.

WHEN THE FEE MUST BE PAID

Application fees must be paid when the application is lodged. The AAT may dismiss your application if you do not pay the fee within six weeks after lodging the application.

HOW TO PAY A FEE

You can pay a fee in cash or by cheque, money order, EFTPOS or credit card. We accept payment by MasterCard and Visa.

All payment types are accepted at our registries. Credit card payments can also be made by phone.

REFUNDS

We will refund:

- the entire application fee if you were not required to pay it
- the difference between the fee you paid and a lower fee if the lower fee was payable
- if you pay the $1,011 fee or the $543 application fee and the application is resolved in your favour, the difference between the fee you paid and $100. There is no refund if you pay the lower application fee of $100 or the reduced fee of $100.

For more information about fees, including when there is no fee and whether you are eligible to pay a reduced fee, go to the AAT website or contact your local AAT registry.

PART 4: OTHER INFORMATION ABOUT APPLYING TO THE AAT

APPLYING TO SUSPEND A DECISION

In general, a decision continues to operate while we are reviewing it. In some cases, we can order that the decision be suspended while the review is taking place.

If you want to ask us to suspend the operation of the decision, you must complete a *Request for Stay Order* form, which is on our website, and send it to us.

STEPS IN A REVIEW

In most cases, we use alternative dispute resolution (ADR) to help the parties – you and the department or organisation that made the decision you want reviewed – try to reach agreement about how the case should be resolved. Many cases are resolved at this stage. ADR processes are held in private.

If agreement cannot be reached, we will hold a hearing and make a decision. Hearings are usually open to the public.

Our procedures and the time needed to complete the review vary from case to case. We aim to have cases finalised within 12 months.

PRIVACY – WHAT DO WE DO WITH INFORMATION GIVEN TO US?

We collect information from you to process your application and to carry out the review under the *Administrative Appeals Tribunal Act 1975*.

We give a copy of the form to the department or organisation that made the decision you want reviewed. We may also give a copy to any other person that is a party to the review.

If you give us other information during the review that another party does not have, we will usually give them a copy.

Limited information about cases in the AAT's General Division, Freedom of Information Division, National Disability Insurance Scheme Division, Small Business Taxation Division, Taxation & Commercial Division or Veterans' Appeals Division is usually made available to the public on request and can be accessed using *eCase Search* on our website. This information includes the names of the parties and any representatives, the type of application, dates of conferences, hearings or other case events, the types of key documents lodged by the parties and the outcome of an application.

More information is usually made publicly available if we hold a hearing and make a decision. If we prepare a written statement of the reasons for our decision in your case, it will usually be made public and published on the internet, including on the AustLII website (www.austlii.edu.au). For more information about the decisions we publish, see our Publication of Decisions Policy on our website.

We can order that information be kept confidential if we believe there is good reason to do so. You can apply for an order by writing to us stating what information you want kept confidential and why. In some cases, legislation requires that information be kept confidential.

For more information see our fact sheet, *Privacy and confidentiality at the AAT,* and our Privacy Policy. Our Privacy Policy includes information about how you can access and seek correction of your personal information, make a complaint about the way we have handled your personal information and how we will deal with such a complaint. *Privacy and confidentiality at the AAT* and our Privacy Policy are on our website or are available from your local AAT registry.

MORE INFORMATION ABOUT THE AAT

For more information about the AAT and how we conduct reviews go to our website or call us. Our staff can give you information about procedures but cannot give you legal advice.

PART 5: CONTACT THE AAT

How do I submit this form?

You can send us your form by email, post, or fax, or deliver it to a registry.

Email: generalreviews@aat.gov.au

Post: AAT, GPO Box 9955, Your capital city *(Northern Territory residents should write to Adelaide)* or *Norfolk Island residents:* AAT, c/- Supreme Court of Norfolk Island Registry, Kingston, Norfolk Island 2899

In person or by fax:

ADELAIDE Level 2 1 King William St ADELAIDE SA 5000 **FAX (08) 8128 8099**	**BRISBANE** Level 6 295 Ann St BRISBANE QLD 4000 **FAX (07) 3052 3001**	**CANBERRA** Level 8 14 Moore St CANBERRA CITY ACT 2600 **FAX (02) 6243 4600**	**HOBART** Edward Braddon Building Commonwealth Law Courts 39–41 Davey St HOBART TAS 7000 **FAX (02) 9276 5597**
MELBOURNE Level 4 15 William St MELBOURNE VIC 3000 **FAX (03) 9454 6998**	**NORFOLK ISLAND** Supreme Court of Norfolk Island KINGSTON Norfolk Island 2899 **TEL +61 2 9391 2400** **FAX +61 2 9283 4881**	**PERTH** Level 13 111 St Georges Terrace PERTH WA 6000 **FAX (08) 6222 7299**	**SYDNEY** Level 6 83 Clarence St SYDNEY NSW 2000 **FAX (02) 9276 5599**

If you want more information or assistance, call us on **1800 228 333** (calls are free from landline phones, however calls from mobiles may be charged). Residents of northern NSW (postcodes 2460–2490) will be connected to the Brisbane registry and residents of the Northern Territory will be connected to the Adelaide registry.

Non-English speakers can call the Translating and Interpreting Service on 131 450 and ask them to call the AAT.

If you are deaf or have a hearing or speech impairment, contact us through the National Relay Service. For more information visit www.relayservice.gov.au

Website: www.aat.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

29/05/2023 - Hearing/Conference vacated

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Hearing/Conference vacated
To	
CC	

legal@ndiscommission.gov.au
Tom Monks <info@tomandcolegal.com.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Hearing/Conference vacated
Message	Dear Parties, Please be advised that the case management directions hearing listed for 8 June 2023 has been vacated. Yours sincerely
Sent By	Natalie D s47E(c)
Date	29/05/2023
Time	12:15PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

13/06/2023 - Direction/Order

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Direction/Order
To	
CC	

Tom Monks <info@tomandcolegal.com.au>
legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order
Message	Dear Parites Please find attached a copy of an Order in this matter. Yours sincerely
Sent By	Natalie D s47E(c)
Date	13/06/2023
Time	12:21PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
13/06/2023	2023-304455	Order Documents	Order - BLANK Template	Vida Reid	Extension of time to file T-Docs - SEALED	1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	
	)	No: 2023/3361
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	

Re: Vida Reid
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

EXTENDING TIME FOR SERVICE OF DOCUMENTS ON APPLICANT
Section 37(1AE) *Administrative Appeals Tribunal Act 1975* (Cth)

TRIBUNAL: Deputy President Mischin

DATE: 13 June 2023

PLACE: Perth

Pursuant to section 37(1AE) of the *Administrative Appeals Tribunal Act 1975* (Cth) (the Act), and upon written application by the Respondent dated 29 May 2023, the Tribunal extends the time within which the documents referred to in section 37(1) of the Act must be given to the Applicant to no later than 7 July 2023.

.....
Deputy President

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

07/07/2023 - Listing Notice

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Listing Notice
To	
CC	

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice
Message	Dear Ms Moussa, This matter has been listed for an interlocutory hearing to discuss the Respondent's request for an extension of time to lodge T-Docs. If you wish to provide written submissions in support of the Respondent's position, please file these with the Tribunal no later than Wednesday 12 July 2023. A Listing Notice for the interlocutory hearing is attached. Please note that generally listings information is publicly available. I would be grateful if you could advise the Tribunal of your attendance at the hearing at your earliest convenience. Yours sincerely
Sent By	Natalie D s47E(c)
Date	07/07/2023
Time	12:15PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
07/07/2023	2023-354793	Listing Notices	Listing Notice	Commissioner of the NDIS Quality and Safeguards Commission	Amended listing notice - Wednesday 19 July 2023	1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

National Disability Insurance Scheme Division

Our Ref: 2023/3361 & 2023/3363 Contact Officer: Jessica P

7 July 2023

Commissioner of the NDIS Quality and Safeguards Commission
PO Box 210
PENRITH NSW 2750

Dear Ms Moussa

APPLICANT: **Vida Reid & Simon Reid**
RESPONDENT: **Commissioner of the NDIS Quality and Safeguards Commission**

This application has been listed as shown below:

Interlocutory Hearing by telephone - Extension of time application to lodge T-Docs (opposed)

Date: Friday, 14 July 2023
Time: 1:00PM (AWST)
Location: By telephone

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Natalie D
For the Registrar

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

07/07/2023 - Listing Notice

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Listing Notice
To	
CC	

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice
Message	Dear Ms Moussa Please find attached an amended Listing Notice in this matter. Please note that generally listings information is publicly available. Yours sincerely
Sent By	Natalie D s47E(c)
Date	07/07/2023
Time	4:20PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
07/07/2023	2023-354793	Listing Notices	Listing Notice	Commissioner of the NDIS Quality and Safeguards Commission	Amended listing notice - Wednesday 19 July 2023	2

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

National Disability Insurance Scheme Division

Our Ref: 2023/3361 & 2023/3363 Contact Officer: Jessica P

7 July 2023

Commissioner of the NDIS Quality and Safeguards Commission
PO Box 210
PENRITH NSW 2750

Dear Ms Moussa

APPLICANT: **Vida Reid & Simon Reid**
RESPONDENT: **Commissioner of the NDIS Quality and Safeguards Commission**

This application has been listed as shown below:

Interlocutory Hearing by telephone - Extension of time application to lodge T-Docs (opposed)

Date: Monday, 17 July 2023
Time: 1:00PM (AWST)
Location: By telephone

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Natalie D
For the Registrar

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

10/07/2023 - General Correspondence

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	General Correspondence
To	
CC	

Pascal.MOUSSA@ndiscommission.gov.au
legal@ndiscommission.gov.au
Tom Monks <info@tomandcolegal.com.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear Parties, The Member presiding over the directions hearing for the above matter is unfortunately not available on Monday 17 July 2023. The directions hearing will need to be vacated My sincere apologies for the inconvenience. Can the parties please advise whether they have availability for the hearing to be heard on Wednesday 19 July at 1pm (AWST) instead? Kind regards,
Sent By	Natalie D[redacted]
Date	10/07/2023
Time	12:00PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

11/07/2023 - Listing Notice

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Listing Notice
To	
CC	

legal@ndiscommission.gov.au
Pascal.MOUSSA@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice
Message	Dear Ms Moussa Please find attached a Listing Notice in this matter. Please note that generally listings information is publicly available. Yours sincerely
Sent By	Natalie D s47E(c)
Date	11/07/2023
Time	11:40AM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
07/07/2023	2023-354793	Listing Notices	Listing Notice	Commissioner of the NDIS Quality and Safeguards Commission	Amended listing notice - Wednesday 19 July 2023	3

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

National Disability Insurance Scheme Division

Our Ref: 2023/3361 & 2023/3363 Contact Officer: Jessica P

7 July 2023

Commissioner of the NDIS Quality and Safeguards Commission
PO Box 210
PENRITH NSW 2750

Dear Ms Moussa

APPLICANT: **Vida Reid & Simon Reid**
RESPONDENT: **Commissioner of the NDIS Quality and Safeguards Commission**

This application has been listed as shown below:

Interlocutory Hearing by telephone - Extension of time application to lodge T-Docs (opposed)

Date: Wednesday, 19 July 2023
Time: 1:00PM (AWST)
Location: By telephone

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Natalie D
For the Registrar

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

19/07/2023 - Direction/Order

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Direction/Order
To	
CC	

Andrew.Dillon@ags.gov.au
Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order
Message	Dear Parites Please find attached a copy of a Direction in this matter. Yours sincerely
Sent By	Natalie D s47E(c)
Date	19/07/2023
Time	5:22PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
19/07/2023	2023-378257	Order Documents	Standard Directions	Commissioner of the NDIS Quality and Safeguards Commission	Directions - Joinder of cases by association SEALED	1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	
	)	No: 2023/3361
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	

Re: Vida Reid
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	
	)	No: 2023/3363
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	

Re: Simon Reid
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	
	)	No: 2023/4494
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	

Re: Forward Focused Group Pty Ltd
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

DIRECTIONS FOR JOINDER OF MATTERS

TRIBUNAL: Deputy President Mischin

DATE: 19 July 2023

PLACE: Perth

1. Application 2023/3364 of Forward Focused Group Pty Ltd, having now been withdrawn and is to be disassociated from application numbers 2023/3361 of Vida Reid and 2023/3363 of Simon Reid.

2. Application number 2023/4494 of Forward Focused Group Pty Ltd and application numbers 2023/3361 of Vida Reid and 2023/3363 of Simon Reid are to be joined as

associated cases and programmed and heard together, and the evidence in any one application, subject to relevance, be taken as evidence in the other applications.



.....

Deputy President

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

19/07/2023 - Direction/Order

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Direction/Order
To	
CC	

Tom Monks <info@tomandcolegal.com.au>
Andrew.Dillon@ags.gov.au
Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order
Message	Dear Parties Please find attached a copy of a Direction granting the Rspondent a further period of time to file T-Documents for the three now associated matters - 2023/3361 Vida Reid, 2023/3363 Simon Reid & 2023/4494 Forward Focused Group Pty Ltd. Please note that now that three current applications have been associated, order and directions will only be sent out under the lead case - 2023/3361 (Vida Reid) but will also apply to the other two cases unless indicated otherwise by the Tribunal. For the avoidance of doubt, this means that the Respondent is to now file their T-Documents in all three matters on of before 7 August 2023 in accordance with the attached direction. Yours sincerely
Sent By	Natalie D s47E(c)
Date	19/07/2023
Time	6:35PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
19/07/2023	2023-378390	Order Documents	Standard Directions	Vida Reid	Sealed	1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	No: 2023/3361
	)	
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	

Re: Vida Reid
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

DIRECTION
ALLOWING FURTHER PERIOD FOR LODGEMENT OF DOCUMENTS
Section 37(1) *Administrative Appeals Tribunal Act 1975* (Cth)

TRIBUNAL: Deputy President Mischin

DATE: 19 July 2023

PLACE: Perth

The Tribunal DIRECTS that:

Pursuant to section 37(1) of the *Administrative Appeals Tribunal Act 1975* (Cth) (the Act), the Respondent be allowed a further period until 7 August 2023 to lodge with the Tribunal the documents referred to in section 37(1) of the Act.

.....
Deputy President

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

08/08/2023 - General Correspondence

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Senior Tribunal Officer
Standard Text	
Subject Description	General Correspondence
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear Ms Dickinson, The Tribunal received the attached Request for Confidentiality Orders for reviews 2023/3361; 3363 and 4494. Can you please confirm that the request is complete? It does not appear to identify the documents; sections and pages of the T-Documents over which the Order is sought. Yours sincerely
Sent By	Jessica P s47E(c)
Date	08/08/2023
Time	2:36PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Date Received	Document Type	Received From	Doc No.	File Name	Description
08/08/2023	Interloc app - S 35 (confidentiality)	Commissioner of the NDIS Quality and Safeguards Commission	1/4	2023.3361 Confidentiality Order Request - Reid - D3WDJV - 20230808.pdf	

Written Reasons for Decision

Other Documents (not saved in TRACS)

ADMINISTRATIVE APPEALS TRIBUNAL
NATIONAL DISABILITY INSURANCE SCHEME DIVISION
PERTH REGISTRY **2023/3361; 2023/3363; 2023/4494**

VIDA REID
SIMON REID
FORWARD FOCUSSED GROUP
Applicants

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

REQUEST FOR CONFIDENTIALITY ORDERS UNDER SECTION 35 OF THE *ADMINISTRATIVE APPEALS TRIBUNAL ACT* 1975

Orders sought:

Under s 35(4) of the *Administrative Appeals Tribunal Act 1975* (Cth) (AAT Act), the Administrative Appeals Tribunal (the Tribunal) directs in the above proceedings:

1. because the T-documents … and … are subject to ongoing criminal proceedings and/or legal professional privilege, the documents are not subject to disclosure requirements under s 37(1)(b) of the AAT Act, and that the disclosure of these T-documents to the applicant or the public at large is prohibited;

2. because the **redacted text** in section … of T-document … (on pages … and … of the T-Docs Bundle is subject to legal professional privilege, the production of the contents of the redacted text to the applicant or the public at large is prohibited; and

3. because the T- document bundles are the subject to ongoing criminal proceedings, the disclosure of these documents to the public at large is prohibited (parties to have liberty to apply to amend this order); and

4. because of their likelihood to prejudice criminal proceedings and/or that legal professional privilege applies there be no publication or disclosure in the Tribunal's decision that reveals the contents of the T-documents … and ….nor the redacted text in section …..of T-document….(on pages…..and….of the T- Docs bundle) nor any of the T-document bundles that remain subject to order 2 above.

Date: 8 August 2023

Andrew Dillon
a/g Senior Executive lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent

Lodged on behalf of the Respondent

The Australian Government Solicitor
4 National Circuit
Barton ACT 2600
DX 5678 Canberra

Contact: Karlie Dickinson

File ref: 23004627
Telephone: 03 9244 1244
E-mail: Karlie.dickinson@ags.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

09/08/2023 - General Correspondence

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Senior Tribunal Officer
Standard Text	
Subject Description	General Correspondence
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear Ms Dickinson, The Tribunal received the attached Request for Confidentiality Orders for reviews 2023/3361; 3363 and 4494. The Tribunal believes the document is incomplete. Please update the document with the identifying documents, page numbers and sections so that the request can be sent to the Applicants for comment. Yours sincerely
Sent By	Jessica P[redacted]
Date	09/08/2023
Time	5:23PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Attached Date	Document Name
09/08/2023	2023.3361 Confidentiality Order Request - Reid - D3WDJV - 20230808.pdf

ADMINISTRATIVE APPEALS TRIBUNAL
NATIONAL DISABILITY INSURANCE SCHEME DIVISION
PERTH REGISTRY **2023/3361; 2023/3363; 2023/4494**

VIDA REID
SIMON REID
FORWARD FOCUSSED GROUP
Applicants

COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION
Respondent

REQUEST FOR CONFIDENTIALITY ORDERS UNDER SECTION 35 OF THE *ADMINISTRATIVE APPEALS TRIBUNAL ACT* 1975

Orders sought:

Under s 35(4) of the *Administrative Appeals Tribunal Act 1975* (Cth) (AAT Act), the Administrative Appeals Tribunal (the Tribunal) directs in the above proceedings:

1. because the T-documents … and … are subject to ongoing criminal proceedings and/or legal professional privilege, the documents are not subject to disclosure requirements under s 37(1)(b) of the AAT Act, and that the disclosure of these T-documents to the applicant or the public at large is prohibited;

2. because the **redacted text** in section … of T-document … (on pages … and … of the T-Docs Bundle is subject to legal professional privilege, the production of the contents of the redacted text to the applicant or the public at large is prohibited; and

3. because the T- document bundles are the subject to ongoing criminal proceedings, the disclosure of these documents to the public at large is prohibited (parties to have liberty to apply to amend this order); and

4. because of their likelihood to prejudice criminal proceedings and/or that legal professional privilege applies there be no publication or disclosure in the Tribunal's decision that reveals the contents of the T-documents … and ….nor the redacted text in section …..of T-document….(on pages…..and….of the T- Docs bundle) nor any of the T-document bundles that remain subject to order 2 above.

Date: 8 August 2023

Andrew Dillon
a/g Senior Executive lawyer
for and on behalf of the Australian Government Solicitor
Solicitor for the Respondent

Lodged on behalf of the Respondent

The Australian Government Solicitor
4 National Circuit
Barton ACT 2600
DX 5678 Canberra

Contact: Karlie Dickinson

File ref: 23004627
Telephone: 03 9244 1244
E-mail: Karlie.dickinson@ags.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

28/08/2023 - Listing Notice

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Listing Notice
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au
Karlie Dickinson <karlie.dickinson@ags.gov.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice
Message	Dear Ms Dickinson Please find attached a Listing Notice in this matter. Please note that generally listings information is publicly available. Yours sincerely
Sent By	Natalie D s47E(c)
Date	28/08/2023
Time	4:47PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
28/08/2023	2023-449783	Listing Notices	Listing Notice	AUSTRALIAN GOVERNMENT SOLICITOR		1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

National Disability Insurance Scheme Division

Our Ref: 2023/3361 Contact Officer: Fiona C
Your Ref:

28 August 2023

Commissioner of the NDIS Quality and Safeguards Commission
C/- AUSTRALIAN GOVERNMENT SOLICITOR
GPO Box 2853
MELBOURNE VIC 3001

Sent by email only

Dear Sir/Madam

APPLICANT:	**Vida Reid, Simon Reid and Forward Focused Group Pty Ltd**
RESPONDENT:	**Commissioner of the NDIS Quality and Safeguards Commission**

This application has been listed as shown below:

Interlocutory Hearing - Confidentiality order application

Date: Tuesday, 12 September 2023
Time: 10:00AM AWST
Location: By Telephone

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Natalie D
For the Registrar

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

12/09/2023 - Direction/Order

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Direction/Order
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>
Tom Monks <info@tomandcolegal.com.au>

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order
Message	Dear Parties, Please find attached a copy of an Order and a Direction in this matter.. Yours sincerely
Sent By	Natalie D s47E(c)
Date	12/09/2023
Time	3:24PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
12/09/2023	2023-477775	Order Documents	Standard Directions	Commissioner of the NDIS Quality and Safeguards Commission	Directions to file written submissions - SEALED	2
12/09/2023	2023-477789	Order Documents	Order - BLANK Template	Commissioner of the NDIS Quality and Safeguards Commission	Order - Non-publication and non-disclosure - SEALED	2

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	
	)	No: 2023/3361
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	

Re: Vida Reid
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

DIRECTION

TRIBUNAL: Deputy President Mischin

DATE: 12 September 2023

PLACE: Perth

The Tribunal DIRECTS that:

1. **By no later than 26 September 2023**, the Applicants file with the Tribunal and give to the Respondent submissions regarding the disclosure and publication of documents required to be provided by the Respondent pursuant to section 37 of the *Administrative Appeals Tribunal Act 1975* (Cth);

2. **By no later than 3 October**, the Respondent file with the Tribunal and give to the Applicants any submissions in reply.

……..
Deputy President

NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	
	)	No: 2023/3361
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	

Re: Vida Reid
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

ORDER
Sections 35 & 37 *Administrative Appeals Tribunal Act 1975* (Cth)
Non-Publication and Non-Disclosure

TRIBUNAL: Deputy President Mischin

DATE: 12 September 2023

PLACE: Perth

The Tribunal ORDERS that:

1. Pursuant to section 35 of the *Administrative Appeals Tribunal Act 1975* (Cth) (AAT Act) and until further order, the documents required to be provided by the Respondent under section 37(1) of the AAT Act must not be published to other than the parties, their representatives, and members of the Tribunal and staff of the Tribunal, and any person performing services for the Tribunal acting in the course of their duties.

2. Pursuant to section 37(1AE) of the AAT Act and until further order, by reason of current criminal proceedings and/or legal professional privilege, the Respondent is not required to give to the Applicants a copy of the documents filed with the Tribunal pursuant to section 37(1) of the AAT Act in the bundle marked 'Index – Confidential Tribunal Documents';

.....
Deputy President

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

28/09/2023 - Direction/Order

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Direction/Order
To	
CC	

legal@ndiscommission.gov.au
Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order
Message	Dear Parties Please find attached a copy of a Direction in this matter. Yours sincerely
Sent By	Natalie D s47E(c)
Date	28/09/2023
Time	5:02PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
28/09/2023	2023-509853	Order Documents	Standard Directions	Commissioner of the NDIS Quality and Safeguards Commission	Sealed	2

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	
	)	No: 2023/3361
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	

Re: Vida Reid
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

DIRECTION

TRIBUNAL: Deputy President Mischin

DATE: 28 September 2023

PLACE: Perth

The Tribunal DIRECTS that the Directions made on 12 September 2023 be varied as follows:

1. In direction 1, by changing the date by which the Applicants file with the Tribunal and give to the Respondent submissions regarding the disclosure and publication of documents required to be provided by the Respondent pursuant to section 37 of the *Administrative Appeals Tribunal Act 1975* (Cth) from no later than 26 September 2023 to **no later than 17 October 2023**.

2. In direction 2, by changing the date by which the Respondent file with the Tribunal and give to the Applicants any submissions in reply from no later than 3 October 2023 to **no later than 24 October 2023**.

.....
Deputy President

NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

- General Correspondence

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Tribunal Officer
Standard Text	
Subject Description	General Correspondence
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear Ms Dickinson Thank you for your emails of 31 August 2023. As requested, please find attached a copy of the Tribunal's correspondence, sent to Mr Monks, Tom & Co Legal, dated 10 August 2023. Yours sincerely
Sent By	
Date	
Time	

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
10/08/2023	2023-418595	C04 Interlocutory Applications	C04.10 Seek view of applicant - confidentiality request about T-Docs	TOM & CO LEGAL		2

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

s22 [redacted] 8/3/2026

Administrative Appeals Tribunal

National Disability Insurance Scheme Division

Our Ref: 2023/3361; 2023/3363; & 2023/4494 Contact Officer: Jessica P

10 August 2023

Vida Reid
C/- TOM & CO LEGAL
45 Delawney Street
BALCATTA WA 6021

Dear Mrs Reid

APPLICANT: **Vida Reid**
RESPONDENT: **Commissioner of the NDIS Quality and Safeguards Commission**

The respondent has sent us their documents. You should also have received an edited copy of them.

The respondent has asked us to make an order that some information in the documents given to us should be made available only to the AAT. A copy of that request is attached for your information.

Please contact us within **14 days** and tell us whether or not you oppose the respondent's application. You can use the attached form to do this.

If you oppose the application, please explain briefly why you oppose it. We usually hold a hearing before we make a decision about an opposed application and you will be notified of any hearing.

If you advise us that you do not oppose the application, we usually make a decision about it without holding a hearing.

Do you want to know more?

More information about us and how we conduct reviews is available on our website (www.aat.gov.au).

If you want further information or assistance, phone us on **1800 228 333***.

Yours sincerely

Jessica P
For the Registrar

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

* You will be connected to the AAT office in your capital city. Residents of northern NSW (postcodes 2460–2490) will be connected to the Brisbane office and residents of the Northern Territory will be connected to the Adelaide office. Calls from landlines are free. You may be charged for calls from mobile phones or payphones.

Administrative Appeals Tribunal

FILE NUMBER	**2023/3361**
APPLICANT	**Vida Reid**
RESPONDENT	**Commissioner of the NDIS Quality and Safeguards Commission**

RESPONSE TO A REQUEST FOR A CONFIDENTIALITY ORDER

Please choose one:

I **agree** to the request for the confidentiality order.

OR

I **do not agree** to the request for the confidentiality order because

..... / /
[Signature and date]

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

17/10/2023 - Direction/Order

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Direction/Order
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>
Tom Monks <info@tomandcolegal.com.au>

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order
Message	Dear Parties, Please find attached a copy of a Direction in this matter. Yours sincerely
Sent By	Natalie D s47E(c)
Date	17/10/2023
Time	2:23PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
17/10/2023	2023-541247	Order Documents	Standard Directions	Commissioner of the NDIS Quality and Safeguards Commission	Sealed	1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	
	)	No: 2023/3361
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	

Re: Vida Reid
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

DIRECTION

TRIBUNAL: Deputy President Mischin

DATE: 17 October 2023

PLACE: Perth

The Tribunal DIRECTS that:

1. **By no later than 31 October 2023**, the Respondent is to file with the Tribunal and serve on the Applicants written submissions in support of its application for a Stay of Proceedings.

2. **By no later than 14 November 2023**, the Applicants are to file with the Tribunal and serve on the Respondent written submissions in reply to the Respondent's application for a Stay of Proceedings.

3. The matter be listed for an interlocutory hearing as soon as practicable after 14 November 2023.

.....
Deputy President

NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

25/10/2023 - Direction/Order

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Direction/Order
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>
Tom Monks <info@tomandcolegal.com.au>

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order
Message	Dear Parties Please find attached a copy of a Direction in this matter. Yours sincerely
Sent By	Natalie D s47E(c)
Date	25/10/2023
Time	5:16PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
25/10/2023	2023-557399	Order Documents	Standard Directions	Vida Reid	Sealed	2

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	
	)	No: 2023/3361
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	

Re: Vida Reid
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

DIRECTION

TRIBUNAL: Deputy President Mischin

DATE: 24 October 2023

PLACE: Perth

The Tribunal DIRECTS that:

1. The Directions dated 28 September 2023 and 17 October 2023 are hereby revoked.

2. **By no later than 2 November 2023**, the Respondent is to file with the Tribunal and serve on the Applicant:

   (a) written submissions, and any evidence upon which she intends to rely, in support of her application for a Stay of Proceedings dated 11 October 2023; and

   (b) any further submissions and evidence in support of her 'Request for Confidentiality Orders Under Section 35 of the *Administrative Appeals Tribunal Act 1975*' application filed on 8 August 2023.

(c) **By no later than 16 November 2023**, the Applicant is to file with the Tribunal and serve on the Respondent any submissions, and any evidence upon which they intend to rely, in respect of the Respondent's applications for a Stay of Proceedings and confidentiality orders.

(d) **By no later than 30 November 2023**, the Respondent is to file any submissions in reply or advise that she does not wish to file a reply.

(e) An interlocutory hearing be listed to hear both applications as soon as practicable after 30 November 2023, or as soon as practicable after the Respondent has advised that she does not wish to file a reply.



.....

Deputy President

NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

25/10/2023 - Direction/Order

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Direction/Order
To	
CC	

Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order
Message	Dear Parties Please find attached an amended copy of the directions dated 24 October 2023 with the paragraph numbers corrected. Yours sincerely
Sent By	Natalie D s47E(c)
Date	25/10/2023
Time	5:24PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
25/10/2023	2023-557399	Order Documents	Standard Directions	Vida Reid	Sealed	3

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	
	)	No: 2023/3361
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	

Re: Vida Reid
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

DIRECTION

TRIBUNAL: Deputy President Mischin

DATE: 24 October 2023

PLACE: Perth

The Tribunal DIRECTS that:

1. The Directions dated 28 September 2023 and 17 October 2023 are hereby revoked.

2. **By no later than 2 November 2023**, the Respondent is to file with the Tribunal and serve on the Applicant:

   (a) written submissions, and any evidence upon which she intends to rely, in support of her application for a Stay of Proceedings dated 11 October 2023; and

   (b) any further submissions and evidence in support of her 'Request for Confidentiality Orders Under Section 35 of the *Administrative Appeals Tribunal Act 1975*' application filed on 8 August 2023.

3. **By no later than 16 November 2023**, the Applicant is to file with the Tribunal and serve on the Respondent any submissions, and any evidence upon which they intend to rely, in respect of the Respondent's applications for a Stay of Proceedings and confidentiality orders**.**

4. **By no later than 30 November 2023**, the Respondent is to file any submissions in reply or advise that she does not wish to file a reply.

5. An interlocutory hearing be listed to hear both applications as soon as practicable after 30 November 2023, or as soon as practicable after the Respondent has advised that she does not wish to file a reply.



Deputy President

NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

29/11/2023 - Listing Notice

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Listing Notice
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice
Message	Dear Ms Dickinson Please find attached a Listing Notice in this matter. Please note that generally listings information is publicly available. Yours sincerely
Sent By	Natalie D s47E(c)
Date	29/11/2023
Time	3:02PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
29/11/2023	2023-622944	Listing Notices	Listing Notice	Commissioner of the NDIS Quality and Safeguards Commission		1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

National Disability Insurance Scheme Division

Our Ref: 2023/3361 Contact Officer: Natalie D

29 November 2023

Commissioner of the NDIS Quality and Safeguards Commission
PO Box 210
PENRITH NSW 2750

Sent by email only

Dear Sir/Madam

APPLICANT: **Vida Reid**
RESPONDENT: **Commissioner of the NDIS Quality and Safeguards Commission**

This application has been listed as shown below:

Interlocutory Hearing by video - Stay and Confidentiality applications

Date: Wednesday, 17 January 2024
Time: 10:00am (AWST)
Location: MS Teams Video

Microsoft Teams meeting

Join on your computer, mobile app or room device
Click here to join the meeting
Meeting ID: 476 131 288 468
Passcode: wmrY3u
Download Teams | Join on the web
Join with a video conferencing device
530646548@vc.aat.gov.au
Video Conference ID: 132 110 156 3
Alternate VTC instructions
Or call in (audio only)
+61 2 9158 7123,,512258136# Australia, Sydney
Phone Conference ID: 512 258 136#
Find a local number | Reset PIN

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Natalie D
For the Registrar

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

18/01/2024 - Direction/Order

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Direction/Order
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>
Ashley.Burgess@ags.gov.au
Tom Monks <info@tomandcolegal.com.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction
Message	Dear Parties, Please find attached a copy of a Direction in this matter. Yours sincerely,
Sent By	Willem W s47E(c)
Date	18/01/2024
Time	4:59PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
17/01/2024	2024-23011	Order Documents	Standard Directions	TOM & CO LEGAL	SAS	3

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	
	)	No: 2023/3361
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	

Re: Vida Reid
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

DIRECTION

TRIBUNAL: Michael Mischin, Deputy President

DATE: 17 January 2024

PLACE: Perth

The Tribunal DIRECTS:

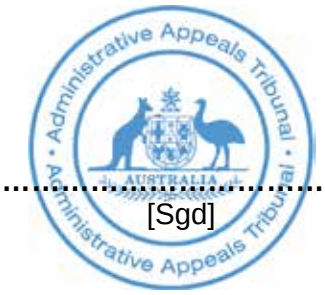
1. **Application 2023/3361 of Vida Reid** be adjourned pending the termination or resolution of criminal proceedings against her relating to matters the subject of the decision under review.

2. **Application 2023/4494 of Forward Focussed Group Pty Ltd** be adjourned pending the termination or resolution of criminal proceedings against Vida Reid referred to in paragraph 1.

3. **By no later than 7 February 2024,** the Applicant Simon Reid is to file with the Tribunal and serve on the Respondent any further submissions and evidence upon which he intends to rely in response to the Respondent's application that Application 2023/3363 of Simon Reid be adjourned or stayed pending the termination or resolution of criminal proceedings against Vida Reid referred to in paragraph 1.

4. **By no later than 28 February 2024,** the Respondent is to file with the Tribunal and serve on the Applicant Simon Reid any further submissions and evidence upon which she intends to rely in reply in support of her application for an adjournment or stay of proceedings in Applicant Simon Reid's Application for review.

5. The interlocutory hearing be relisted as soon as practicable after 28 February 2024, or as soon as practicable after the Respondent has advised that she does not wish to file submissions and evidence in reply.



.....
[Sgd]

NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

09/02/2024 - Direction/Order

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Direction/Order
To	
CC	

Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order
Message	Dear Parties, Please find attached a copy of a Direction in this matter. Yours sincerely
Sent By	Christie C[redacted]
Date	09/02/2024
Time	7:22PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
09/02/2024	2024-61124	Order Documents	Standard Directions	TOM & CO LEGAL	sealed	2

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	
	)	No: 2023/3361
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	

Re: Vida Reid
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

DIRECTION

TRIBUNAL: Deputy President Mischin

DATE: 9 February 2024

PLACE: Perth

The Tribunal DIRECTS that the Directions made on 17 January 2024 be varied as follows:

1. In Direction 3, by changing the date by which the Applicant Simon Reid is to file with the Tribunal and serve on the Respondent any further submissions and evidence upon which he intends to rely in response to the Respondent's application that Application 2023/3363 of Simon Reid be adjourned or stayed pending the termination or resolution of criminal proceedings against Vida Reid, from on or before 7 February to **12 February 2024.**

.....
Deputy President

NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

08/04/2024 - General Correspondence

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Senior Associate
Standard Text	
Subject Description	General Correspondence
To	
CC	

Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear Parties, i refer to the above matter. The Tribunal is planning to schedule a 1 hour telephone directions hearing. Please advise the Tribunal of your availability for the month of April by COB 9 April 2024. Yours sincerely,
Sent By	Christie C[redacted]
Date	08/04/2024
Time	12:55PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

09/04/2024 - General Correspondence

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Senior Associate
Standard Text	
Subject Description	General Correspondence
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>
Tom Monks <info@tomandcolegal.com.au>

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear Parties, i refer to the above matter. The Tribunal is planning to schedule a 1 hour telephone directions hearing. Please advise the Tribunal of your availability for the first 2 weeks of May 2024 by COB 11 April 2024. Yours sincerely, Christie C[redacted]
Sent By	
Date	09/04/2024
Time	1:45PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

11/04/2024 - Listing Notice

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Senior Associate
Standard Text	
Subject Description	Listing Notice
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice
Message	Dear Ms Dickinson Please find attached a Listing Notice in this matter. Please note that generally listings information is publicly available. Yours sincerely
Sent By	Christie C[redacted]
Date	11/04/2024
Time	6:57PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
11/04/2024	2024-161908	Listing Notices	Listing Notice	AUSTRALIAN GOVERNMENT SOLICITOR		1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

National Disability Insurance Scheme Division

Our Ref: 2023/3361 Contact Officer: Christie O

11 April 2024

Commissioner of the NDIS Quality and Safeguards Commission
C/- AUSTRALIAN GOVERNMENT SOLICITOR
GPO Box 2853
MELBOURNE VIC 3001

Dear Sir/Madam

APPLICANT: **Vida Reid**
RESPONDENT: **Commissioner of the NDIS Quality and Safeguards Commission**

This application has been listed as shown below:

Directions Hearing by telephone
Date: Wednesday, 8 May 2024
Time: 10:00AM (AWST)
Location: By Telephone

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Christie O
For the Registrar

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

16/04/2024 - Listing Notice

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Senior Associate
Standard Text	
Subject Description	Listing Notice
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice
Message	Dear Ms Dickinson, Please see attached amended listing notices, noting the listing on 8 May 2024 is for the below 3 matters 2023/3363 - Simon Reid and Commissioner of the NDIS Quality and Safeguards Commission 2023/3361- Vida Reid and Commissioner of the NDIS Quality and Safeguards Commission 2023/4494 - Forward Focused Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission The purpose of the telephone directions hearing for the above 3 matters is to determine the status of the extraneous proceedings of the Applicants and determine the next steps to bring the matters to a hearing. Yours sincerely,
Sent By	Christie C[redacted]
Date	16/04/2024
Time	7:39PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
11/04/2024	2024-161906	Listing Notices	Listing Notice	TOM & CO LEGAL		3

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Attached Date	Document Name
16/04/2024	2023 4494 Listing Notice.doc
16/04/2024	2023 3363 Listing Notice.doc

Administrative Appeals Tribunal

National Disability Insurance Scheme Division

Our Ref: 2023/3361 Contact Officer: Christie O

16 April 2024

Sent via email only

Dear Parties,

APPLICANT: **Vida Reid**
RESPONDENT: **Commissioner of the NDIS Quality and Safeguards Commission**

This application has been listed as shown below:

Directions Hearing by telephone
Date: Wednesday, 8 May 2024
Time: 10:00AM
Location: By Telephone

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Christie O
For the Registrar

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

Administrative Appeals Tribunal

National Disability Insurance Scheme Division

Our Ref: 2023/4494
Your Ref: 23004627

Contact Officer: Christie O

16 April 2024

Dear Parties,

APPLICANT: **Forward Focused Group Pty Ltd**
RESPONDENT: **Commissioner of the NDIS Quality and Safeguards Commission**

This application has been listed as shown below:

Directions Hearing by telephone
Date: Wednesday, 8 May 2024
Time: 10:00AM

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Christie O
For the Registrar

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

Administrative Appeals Tribunal

National Disability Insurance Scheme Division

Our Ref: 2023/3363 Contact Officer: Christie O

15 April 2024

Sent via email only

Dear Parties,

APPLICANT: **Simon Reid**
RESPONDENT: **Commissioner of the NDIS Quality and Safeguards Commission**

This application has been listed as shown below:

Directions Hearing by telephone
Date: Wednesday, 8 May 2024
Time: 10:00AM

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Christie O
For the Registrar

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

08/05/2024 - Listing Notice

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Senior Associate
Standard Text	
Subject Description	Listing Notice
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice
Message	Dear Ms Dickinson, Please find attached a Listing Notice in this matter. Please note that generally listings information is publicly available. Yours sincerely
Sent By	Christie C[redacted]
Date	08/05/2024
Time	5:45PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
08/05/2024	2024-202280	Listing Notices	Listing Notice	TOM & CO LEGAL		1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

National Disability Insurance Scheme Division

Our Ref: 2023/3361, 2023/3363 & 2023/4494

Contact Officer: Christie O

8 May 2024

Dear Parties,

APPLICANT:	**Vida Reid**
RESPONDENT:	**Commissioner of the NDIS Quality and Safeguards Commission**

APPLICANT:	**Simon Reid**
RESPONDENT:	**Commissioner of the NDIS Quality and Safeguards Commission**

APPLICANT:	**Forward Focused Group Pty Ltd**
RESPONDENT:	**Commissioner of the NDIS Quality and Safeguards Commission**

This applications has been listed as shown below:

Directions Hearing by telephone
Date: Wednesday, 15 May 2024
Time: 11:00AM (AWST)

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Christie O
For the Registrar

Telephone: (08) 6222 7200

Email: perth.registry@aat.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

15/05/2024 - Direction/Order

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Senior Associate
Standard Text	
Subject Description	Direction/Order
To	
CC	

Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

Subject	2023/3361- RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction
Message	Dear Parties, Please find attached a copy of a Direction in this matter. Yours sincerely
Sent By	Christie C[redacted]
Date	15/05/2024
Time	6:49PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
15/05/2024	2024-212741	Order Documents	Standard Directions	AUSTRALIAN GOVERNMENT SOLICITOR	sealed	2

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	No: 2023/3361
	)	No: 2023/3363
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	No: 2023/4494

Re: Vida Reid
Applicant

Re: Simon Reid
Applicant

Re: Forward Focus Group Pty Ltd
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

DIRECTION

TRIBUNAL: Deputy President Mischin

DATE: 15 May 2024

PLACE: Perth

The Tribunal DIRECTS that:

1. **By no later than 5 June 2024** the Respondent file with the Tribunal and serve on each of the Applicants an updated tender bundle.

2. **On or before 26 June 2024** the Applicants file with the Tribunal and serve on the Respondent a Statement of Facts, Issues and Contentions and any further evidence on which the Applicants propose to rely at the hearing.

3. **On or before 17 July 2024** the Respondent file with the Tribunal and serve on the Applicants a Statement of Facts, Issues and Contentions and any further evidence on which the Respondent proposes to rely at the hearing.

4. **On or before 31 July 2024** the Applicants may file with the Tribunal and serve on the Respondent any submissions in reply, or advise the Tribunal and Respondent that they do not propose to file further submissions.

5. **On or before 7 August 2024** the parties file with the Tribunal and exchange hearing certificates for the months of September to December 2024 inclusive.



Deputy President

NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

17/06/2024 - Direction/Order

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Senior Associate
Standard Text	
Subject Description	Direction/Order
To	
CC	

Oliver.Young@ags.gov.au
Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction
Message	Dear Parties, Please find attached a copy of a Direction in this matter. Yours sincerely
Sent By	Christie C[redacted]
Date	17/06/2024
Time	5:48PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
17/06/2024	2024-267095	Order Documents	Standard Directions	AUSTRALIAN GOVERNMENT SOLICITOR		1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	No: 2023/3361
	)	No: 2023/3363
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	No: 2023/4494

Re: Vida Reid
Applicant

Re: Simon Reid
Applicant

Re: Forward Focused Group Pty Ltd
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

DIRECTION

TRIBUNAL: Deputy President Mischin

DATE: 17 June 2024

PLACE: Perth

The Tribunal DIRECTS that the Directions made on 15 May 2024 be varied as follows:

1. In direction 2 by changing the date that the Applicants file with the Tribunal and serve on the Respondent a Statement of Facts, Issues and Contentions and any further evidence on which the Applicants propose to rely at the hearing from 'On or before 26 June 2024' to '**On or before 10 July 2024**'.

2. In direction 3 by changing the date that the Respondent file with the Tribunal and serve on the Applicants a Statement of Facts, Issues and Contentions and any further evidence on which the Respondent proposes to rely at the hearing from 'On or before 17 July 2024' to '**On or before 31 July 2024**'.

3. In direction 4 by changing the date that the Applicants may file with the Tribunal and serve on the Respondent any submissions in reply, or advise the Tribunal and Respondent that they do not propose to file further submissions, from 'On or before 31 July 2024 to '**On or before 7 August 2024**'.

4. In direction 5 by changing the date that the parties file with the Tribunal and exchange hearing certificates for the months of September to December 2024 inclusive from ‘On or before 7 August 2024’ to ’**On or before 14 August 2024**’.



Deputy President

NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

16/07/2024 - General Correspondence

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	General Correspondence
To	
CC	

oliver.young@ags.gov.au
Karlie Dickinson <karlie.dickinson@ags.gov.au>
Tom Monks <info@tomandcolegal.com.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear Mr Monks, I refer to your email of 1 July 2024. The Deputy President has confirmed the Direction is correct. The Respondent should disclose a single updated Bundle containing both the documents for Ms Vida Reid and Mr Simon Reid's applications. The Deputy President would like the applicants to be served separate copies ie a copy of the combined T-documents be provided to each Applicant. Yours sincerely
Sent By	Rachel S s47E(c)
Date	16/07/2024
Time	4:39PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

17/07/2024 - General Correspondence

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	General Correspondence
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>

Tom Monks <info@tomandcolegal.com.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear Ms Dickinson, I refer to the Respondent's email of 21 June 2024 requesting a s35 confidentiality order over documents. The application is currently before the Deputy President for consideration. Can the Respondent please clarify why the document cannot or is not described by its title or date of production in the application? Further, the Tribunal wishes to confirm the Applicant has provided their viewin regards to the confidentiality order. Yours sincerely
Sent By	Rachel S[redacted]
Date	17/07/2024
Time	12:33PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

30/07/2024 - Direction/Order

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Direction/Order
To	
CC	

Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order
Message	Dear Parties, Please find attached a copy of an Order in this matter. Yours sincerely
Sent By	Rachel S s47E(c)
Date	30/07/2024
Time	1:20PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
30/07/2024	2024-341473	Order Documents	Confidentiality order - Section 35(2)	AUSTRALIAN GOVERNMENT SOLICITOR		1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	No: 2023/3361
	)	No: 2023/3363
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	No: 2023/4494

Re: Vida Reid
Applicant

Re: Simon Reid
Applicant

Re: Forward Focus Group Pty Ltd
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

ORDER
Sections 35(4) & 37 *Administrative Appeals Tribunal Act 1975* (Cth)
Non-Publication and Non-Disclosure

TRIBUNAL: Deputy President Mischin

DATE: 26 July 2024

PLACE: Perth

The Tribunal ORDERS that:

1. Pursuant to section 37(1AE) of the AAT Act, and until further order, the Respondent is not required to give to the Applicants a copy of the document filed with the Tribunal pursuant to section 37(1) of the AAT Act intituled 'Tactical Intelligence Report – Project Archer' dated 18 August 2022, because disclosure of the document would identify internal investigative processes which could prejudice future investigations.

2. Pursuant to section 35(4) of the *Administrative Appeals Tribunal Act 1975* (Cth) (AAT Act), and until further order, the document intituled 'Tactical Intelligence Report – Project Archer' dated 18 August 2022 must not be published or disclosed to other than members of the Tribunal and staff of the Tribunal acting in the course of their duties.

.....
Deputy President

NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

18/09/2024 - General Correspondence

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	General Correspondence
To	
CC	

Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear Parties, I refer to the Respondent's email of 6 August requesting a telephone directions hearing be held. The Tribunal apologises for the delay. The Tribunal is in the process of re-constituting the three applications to a new Member. Unfortunately the process is taking longer than anticipated due to factors related to the transition to the new Tribunal. The Tribunal will endeavour to update the parties as soon as possible. Yours sincerely
Sent By	Rachel S[redacted]
Date	18/09/2024
Time	12:31PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

National Disability Insurance Scheme Division

Our Ref: 2023/3361 Contact Officer: Rachel S
Your Ref:

26 September 2024

Dear Sir/Madam

APPLICANT: Vida Reid
RESPONDENT: Commissioner of the NDIS Quality and Safeguards Commission

This application has been listed as shown below:

Case Management Directions Hearing by telephone
Date: Thursday, 3 October 2024
Time: 9:00AM Perth; 11:00AM Sydney

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Daniel K
For the Registrar

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

26/09/2024 - Listing Notice

Email

Email Details

From	sydney.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Listing Notice
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>
Tom Monks <info@tomandcolegal.com.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice
Message	Dear parties, Please find attached a Listing Notice for a listing in this matter. May each party please confirm their appearance and provide the best contact number for the listing. Should either party not be available to attend the anticipated event, it is requested the parties confer and provide the Tribunal with mutual availability to reschedule this listing. Yours sincerely,
Sent By	Daniel K[47E(d)]
Date	26/09/2024
Time	5:53PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
26/09/2024	2024-443584	Listing Notices	Listing Notice			1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

27/09/2024 - General Correspondence

Email

Email Details

From	perth.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Senior Tribunal Officer
Standard Text	
Subject Description	General Correspondence
To	
CC	

Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

Subject	2023/3361, 2023/3363 & 2023/4494 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission
Message	Dear Parties, Please find attached a copy of the Tribunal's correspondence dated 27 September 2024. Yours sincerely
Sent By	Clare M s47E(c)
Date	27/09/2024
Time	3:52PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	RecipientDescription	Rev No.
27/09/2024	2024-445758	C02 Receiving, Registering and Checking an Application	C02.21 Application transferred to another registry: letter to parties		1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

National Disability Insurance Scheme Division

Our Ref: 2023/3361, 2023/3363 &
2023/4494

27 September 2024

Dear Parties,

APPLICANT: **Reid (and Reid and Fast Forward Group P/L)**
RESPONDENT: **Commissioner of the NDIS Quality and Safeguards Commission**

I am writing to you about the applications for review of decisions which were lodged in this registry. We have transferred it to our Brisbane registry. Please direct all future correspondence and enquiries to:

District Registrar
Administrative Appeals Tribunal
GPO Box 9955
Brisbane, QLD, 4001

Tel: (07) 3052 3000
Email Brisbane.registry@aat.gov.au

The file number for the application will stay the same.

Do you want to know more?

More information about us and how we conduct reviews is available on our website (www.aat.gov.au).

If you want more information or assistance, call us on **1800 228 333***.

Yours sincerely

Clare M
For the Registrar

Telephone: (08) 6222 7200
Email: perth.registry@aat.gov.au

* You will be connected to the AAT office in your capital city. Residents of northern NSW (postcodes 2460–2490) will be connected to the Brisbane office and residents of the Northern Territory will be connected to the Adelaide office. Calls from landlines are free. You may be charged for calls from mobile phones or payphones.

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

03/10/2024 - Listing Notice & Direction

Email

Email Details

From	sydney.registry@aat.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Listing Notice & Direction
To	
CC	

Tom Monks <info@tomandcolegal.com.au>
Karlie Dickinson <karlie.dickinson@ags.gov.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice & Direction
Message	Dear parties, Please find attached Directions made and a Listing Notice for a hearing in this matter. May each party please confirm their appearances and provide the best contact number for the hearing. Should either party not be available to attend the anticipated event, it is requested the parties confer and provide the Tribunal with mutual availability to reschedule this listing. Yours sincerely,
Sent By	Daniel K[redacted]
Date	03/10/2024
Time	4:39PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
03/10/2024	2024-454608	Listing Notices	Listing Notice			1
03/10/2024	2024-454564	Order Documents	Standard Directions		S&S	1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Appeals Tribunal

National Disability Insurance Scheme Division

Our Ref: 2023/3361; 2023/3363; 2023/4494
Your Ref:

Contact Officer: Brisbane R

3 October 2024

Dear Sir/Madam

APPLICANT: Vida Reid
RESPONDENT: Commissioner of the NDIS Quality and Safeguards Commission

This application has been listed as shown below:

Interlocutory Hearing by video - Stay application
Date: Monday, 25 November 2024
Time: 12:00PM Brisbane time; 10:00AM Perth time

Microsoft Teams Need help?
Join the meeting now

Dial in by phone
+61 2 9158 7123,,113479234# Australia, Sydney
Find a local number
Phone conference ID: 113 479 234#
Join on a video conferencing device
Tenant key: teams@tribunal.onpexip.com
Video ID: 132 110 423 7
More info

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 42A(2) of the AAT Act.

Yours sincerely

Daniel K
For the Registrar

Telephone: (07) 3052 3000
Email: brisbane.registry@aat.gov.au

Administrative Appeals Tribunal

ADMINISTRATIVE APPEALS TRIBUNAL	**)**	
	)	No: 2023/3361 2023/3363 2023/4494
NATIONAL DISABILITY INSURANCE SCHEME DIVISION	**)**	

Re: Vida Reid
Applicant

Re: Simon Reid
Applicant

Re: Forward Focused Group Pty Ltd
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

DIRECTION

TRIBUNAL: Deputy President G Lazanas

DATE: 3 October 2024

PLACE: Perth

The Tribunal DIRECTS:

1. the Direction dated 17 June 2024 (in relation to all proceedings, namely, 2023/3361, 2023/3363 and 2023/4494) is vacated.

2. in relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **24 October 2024**, the Applicants shall file with the Tribunal and serve on the Respondent any written submissions and evidence in relation to their stay application and request for confidentiality regarding a medical report.

3. in relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **14 November 2024**, the Respondent shall file with the Tribunal and serve on the Applicants any written submissions and evidence in relation to the Applicants' stay application and request for confidentiality regarding a medical report.

4. in relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **21 November 2024**, the Applicants shall file with the Tribunal and serve on the Respondent any written submissions in reply or notify the Tribunal and the Respondent in writing that there are no submissions in reply.

5. the matter be listed for an interlocutory hearing regarding the Applicants' stay application and request for confidentiality regarding a medical report on **25 November 2024** at **10:00AM** (Perth time).

……[SGD]……..
Deputy President G Lazanas

NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 42A(5)(b) of the *Administrative Appeals Tribunal Act 1975*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, in accordance with the General Practice Direction, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

28/10/2024 - General Correspondence

Email

Email Details

From	brisbane.registry@art.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	General Correspondence
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear Ms Dickinson, I attach all correspondence the Tribunal has received from the Applicant's new representative, and an email from Ms Reid notifying the Tribunal that Tom & Co no longer act for her. Kind Regards,
Sent By	Madeleine S[redacted]
Date	28/10/2024
Time	4:48PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Date Received	Document Type	Received From	Doc No.	File Name	Description
07/10/2024	Correspondence	Vida Reid	1/1	FW_ Notification of Change in Legal Representat....pdf	
18/10/2024	Representation - notice of representative	Vida Reid	1/1	FW_ NATIONAL DISABILITY INSURANCE SCHEME DIVISI....pdf	

Written Reasons for Decision

Other Documents (not saved in TRACS)

Attached Date	Document Name
28/10/2024	241023 Letter to ART request for extension of time.pdf

WEEKS & CO.
BARRISTERS & SOLICITORS

PO Box, 805 Canning Bridge
Applecross WA 6153

Suite C2
1 The Esplanade
Mt Pleasant WA 6153

E peter@weeksco.com.au
T (08) 6141 3178

Our Ref: PWW:2810-24

23 October 2024

Administrative Review Tribunal
Brisbane Registry

By online lodgement

Dear Sir/Madam

NATIONAL DISABILITY INSURANCE SCHEME DIVISION: No: 2023/3361; No 2023/3363; No 2023/4494

1. We act for the applicant Ms Vida Reid in respect of the above proceedings.

2. We understand the firm Tom & Co previously acted for our client, together with the other applicants, Simon Reid and Forward Focused Group Pty Ltd.

3. We refer to our emails to the Registry dated 11 and 18 October 2024 within which we requested copies of the documents filed by the parties in the proceedings.

4. We also indicated in our correspondence that we may seek an extension of time to comply with orders requiring our client to file materials in support of the application to stay the proceedings with respect to her by 24 October 2024.

5. As noted in those emails, there have been telephone calls from Charles Dallimore of this office to the Tribunal following up those matters. We understood the case manager would return our call to discuss those matter however that has not occurred.

6. In accordance with 4.31 of the Administrative Review Tribunal (Common Procedures) Practice Direction 2024, we write to request further time to comply with those orders.

7. We request an extension on the orders to 21 November 2024.

8. The reason for the request is that we have only recently been engaged in relation to this matter and do not yet have a copy of the documents filed by the parties in the proceedings.

Liability limited by a scheme approved under Professional Standards Legislation

9. Given our recent engagement, we have not yet confirmed with the other parties whether they consent to this request. We will endeavour to do so as soon as possible and update the Tribunal accordingly.

Yours faithfully



Peter Weeks
Principal
E: peter@weeksco.com.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

28/10/2024 - Listing Notice

Email

Email Details

From	brisbane.registry@art.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Listing Notice
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>
charles@weeksco.com.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice
Message	Dear Parties, This matter has been listed for a directions hearing by telephone on 6 November 2024 at 10:00AM AEST, to deal with Mr Dallimore's request for an extension to file and serve material, and his request that all the parties' material be re-served upon the applicant. The Tribunal is also open to considering any proposed directions made with the consent of the parties, to avoid the need for a directions hearing. Kindly confirm appearances no later than 4 November 2024. Yours sincerely
Sent By	Madeleine S s47E(c)
Date	28/10/2024
Time	5:13PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
28/10/2024	2024-491309	Listing Notices	Listing Notice	Commissioner of the NDIS Quality and Safeguards Commission		1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Review Tribunal

Our Ref: 2023/3361 Contact Officer: MST TL B

28 October 2024

Commissioner of the NDIS Quality and Safeguards Commission
PO Box 210
PENRITH NSW 2750

Dear Sir/Madam

APPLICANT: **Vida Reid**
RESPONDENT: **Commissioner of the NDIS Quality and Safeguards Commission**

This application has been listed as shown below:

Directions Hearing by telephone
Date: Wednesday, 6 November 2024
Time: 10:00AM

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 99 of the Administrative Review Tribunal Act

Yours sincerely

Madeleine S
For the Registrar

Telephone: 1800 228 333
Email: brisbane.registry@art.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

05/11/2024 - Hearing/Conference vacated

Email

Email Details

From	brisbane.registry@art.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Hearing/Conference vacated
To	
CC	

Tom Monks <info@tomandcolegal.com.au>
charles@weeksco.com.au
Karlie Dickinson <karlie.dickinson@ags.gov.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Hearing/Conference vacated
Message	Dear Parties, Due to an administrative error of the Tribunal, the directions hearing listed for tomorrow, 6 November 2024, cannot go ahead, and has therefore been vacated. We apologise for the inconvenience this may cause. An email with an updated listing notice will follow shortly. Yours sincerely
Sent By	Madeleine S[redacted]
Date	05/11/2024
Time	5:46PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

06/11/2024 - Listing Notice

Email

Email Details

From	brisbane.registry@art.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Listing Notice
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>
charles@weeksco.com.au
Tom Monks <info@tomandcolegal.com.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice
Message	Dear Parties, Please find attached a Listing Notice in this matter. Kindly confirm your appearances no later than 12 November 2024. Please note that generally listings information is publicly available. Yours sincerely
Sent By	Madeleine S[redacted]
Date	06/11/2024
Time	7:35PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
06/11/2024	2024-507991	Listing Notices	Listing Notice	Commissioner of the NDIS Quality and Safeguards Commission		1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Review Tribunal

Our Ref: 2023/3361; 2023/3363; 2023/4494

Contact Officer: MST TL B

6 November 2024

Dear Sir/Madam

APPLICANTS:	Vida Reid
AND	Simon Reid
AND	Forward Focused Group Pty Ltd
RESPONDENT:	Commissioner of the NDIS Quality and Safeguards Commission

This application has been listed as shown below:

Directions Hearing by telephone
Date: Thursday, 14 November 2024
Time: 10:00AM AEST

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 99 of the Administrative Review Tribunal Act

Yours sincerely

Madeleine S
For the Registrar

Telephone: 1800 228 333
Email: brisbane.registry@art.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

14/11/2024 - Direction/Order

Email

Email Details

From	brisbane.registry@art.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Direction/Order
To	
CC	

Tom Monks <info@tomandcolegal.com.au>
charles@weeksco.com.au
Karlie Dickinson <karlie.dickinson@ags.gov.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order
Message	Dear Parties, Please find attached a copy of a Direction in this matter. Yours sincerely
Sent By	Madeleine S s47E(c)
Date	14/11/2024
Time	3:51PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
14/11/2024	2024-521829	Order Documents	Order - BLANK Template	Vida Reid	SS	2

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

ADMINISTRATIVE REVIEW TRIBUNAL)
)
) No: 2023/3361, 2023/3363 & 2023/4494
)

Re: Vida Reid
Applicant

Re: Simon Reid
Applicant

Re: Forward Focused Group Pty Ltd
Applicant

And: Commissioner of the NDIS Quality and Safeguards Commission
Respondent

TRIBUNAL: Deputy President K McMillan KC

DATE: 14 November 2024

PLACE: Brisbane

The Tribunal DIRECTS:

1. The Direction dated 3 October 2024 is vacated.

2. The Interlocutory hearing listed for 25 November 2024 is vacated.

3. In relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **13 December 2024**, the Applicants shall file with the Tribunal and serve on the Respondent any written submissions and evidence in relation to their stay application and request for confidentiality regarding a medical report.

4. In relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **10 January 2025**, the Respondent shall file with the Tribunal and serve on the Applicants any written submissions and evidence in relation to the Applicants' stay application and request for confidentiality regarding a medical report.

5. in relation to proceedings 2023/3361 (Vida Reid) and 2023/4494 (Forward Focused Group Pty Ltd): on or before **24 January 2025**, the Applicants shall file with the Tribunal and serve on the Respondent any written submissions in reply or notify the Tribunal and the Respondent in writing that there are no submissions in reply.

6. the matter be listed for an interlocutory hearing regarding the Applicants' stay application and request for confidentiality regarding a medical report no earlier than **10 February 2025**.

.....[SGD].....
Deputy President K McMillan KC

NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 100 of the *Administrative Review Tribunal Act 2024*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:
   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether the other party agrees to the request.

   The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

5. If you have been directed to give the Tribunal a Hearing Certificate, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

22/01/2025 - Listing Notice

Email

Email Details

From	brisbane.registry@art.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Associate
Standard Text	
Subject Description	Listing Notice
To	
CC	

Karlie Dickinson <karlie.dickinson@ags.gov.au>

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice
Message	Dear Ms Dickinson, Please find attached a Listing Notice in this matter. Please note that generally listings information is publicly available. Yours sincerely,
Sent By	Ailish M[s47E(c)]
Date	22/01/2025
Time	5:18PM

Attachments

Documents Generated in TRACS

Date Generated	Document No.	Document Type	Document Title	Recipient	Description	Rev No.
22/01/2025	2025-27287	Listing Notices	Listing Notice	AUSTRALIAN GOVERNMENT SOLICITOR		1

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Administrative Review Tribunal

Our Ref: 2023/3361 Contact Officer: Angelique C

22 January 2025

Commissioner of the NDIS Quality and Safeguards Commission
C/- AUSTRALIAN GOVERNMENT SOLICITOR
GPO Box 2853
MELBOURNE VIC 3001

Service by email

Dear Sir/Madam

APPLICANT: Vida Reid
RESPONDENT: Commissioner of the NDIS Quality and Safeguards Commission

This application has been listed as shown below:

Interlocutory Hearing by video
Date: Thursday, 13 February 2025
Time: 10:00AM

Microsoft Teams
Join the meeting now
Meeting ID: 445 878 870 070
Passcode: B5GW2g4M

Dial in by phone
+61 2 9158 7123,,968907626# Australia, Sydney
Find a local number
Phone conference ID: 968 907 626#

Join on a video conferencing device
Tenant key: teams@tribunal.onpexip.com
Video ID: 138 106 721 5

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 99 of the Administrative Review Tribunal Act

Yours sincerely,

Ailish M
For the Registrar
Telephone: 1800 228 333
Email: brisbane.registry@art.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

09/05/2025 - General Correspondence

Email

Email Details

From	brisbane.registry@art.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Tribunal Services Officer
Standard Text	
Subject Description	General Correspondence
To	
CC	

legal@ndiscommission.gov.au
Charles Dallimore <charles@weeksco.com.au>

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear Parties, The Tribunal wishes to list this matter for a Telephone Directions Hearing to progress the matter. It should be noted that this will only be listed with the Applicant and Respondent. The Telephone Directions Hearing will address the issues of the privacy breach, Directions to the listing of the application for a stay and Mrs Reid's application to be heard separately. The Tribunal intends to correspond with Mr Reid and the Company, as there have been certain issues that have arisen which Ms Reid seeks to ventilate and the nature of this, indicates that such matters be dealt with in their absence. Could both Mrs Reid and the Respondent indicate their views as to this course. Yours sincerely
Sent By	Kathy L s47E(c)
Date	09/05/2025
Time	3:19PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

14/05/2025 - General Correspondence

Email

Email Details

From	brisbane.registry@art.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Tribunal Services Officer
Standard Text	
Subject Description	General Correspondence
To	
CC	

vida_reid@yahoo.com
karlie.dickinson@ags.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear Parties, The Tribunal wishes to list this matter for a Telephone Directions Hearing to progress the matter. It should be noted that this will only be listed with the Applicant and Respondent. The Telephone Directions Hearing will address the issues of the privacy breach, Directions to the listing of the application for a stay and Mrs Reid's application to be heard separately. The Tribunal intends to correspond with Mr Reid and the Company, as there have been certain issues that have arisen which Ms Reid seeks to ventilate and the nature of this, indicates that such matters be dealt with in their absence. Could both Mrs Reid and the Respondent indicate their views as to this course and the availability of the parties on the below dates: - 30 May 2025 - 1:00PM (AEST) 6 June 2025 or later - 10 June - 11 June Additionally, the Respondent notes that Mrs Reid is no longer represented. Mrs Reid, could you please confirm this so future correspondence can be directed to you. Yours sincerely
Sent By	Kathy L s47E(c)
Date	14/05/2025
Time	3:29PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

19/05/2025 - Listing Notice

Email

Email Details

From	brisbane.registry@art.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Tribunal Officer
Standard Text	
Subject Description	Listing Notice
To	
CC	

vida_reid@yahoo.com
karlie.dickinson@ags.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice
Message	Dear Parties, APPLICANT: Viva Reid RESPONDENT: Commissioner of the NDIS Quality and Safeguards Commission This application has been listed as shown below: Directions Hearing by telephone Date: Friday 6 June 2025 Time: 1:00PM (AEST) Please note the Tribunal will contact you by telephone on the above date and time. Please rply to this email via at your earliest convenience with your appearance/s for the above, including the contact details and relationship/position of any additional parties that need to be dialled in as representatives, support persons or observers What happens if you do not attend? If you cannot attend at the time listed above, you should advise us as soon as possible. If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 99 of the Administrative Review Tribunal Act 2024. Yours sincerely,
Sent By	Kathy L s47E(c)
Date	19/05/2025
Time	4:16PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

06/06/2025 - General Correspondence

Email

Email Details

From	brisbane.registry@art.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Tribunal Officer
Standard Text	
Subject Description	General Correspondence
To	
CC	

karlie.dickinson@ags.gov.au
vida_reid@yahoo.com

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear Parties, Following the conclusion of the Telephone Directions Hearing, the Tribunal seeks to enquire the parties preference of the modality of the hearing. If both parties are content with Microsoft Teams, could the Respondent please include this in the directions sought to be made. Yours sincerely
Sent By	Kathy L[s47E(c)]
Date	06/06/2025
Time	4:06PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

21/08/2025 - General Correspondence

Email

Email Details

From	s47E(d) art.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Member Support Officer - Legal
Standard Text	
Subject Description	General Correspondence
To	
CC	

karlie.dickinson@ags.gov.au
vida_reid@yahoo.com

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear Parties, The Tribunal would like to schedule a telephone directions hearing for this matter to discuss the current stage. It would be appreciated if parties could advise the Tribunal of availability between 25 August and 5 Septemeber 2025 by way of reply email. Please include dates and times in the response. A listing notice will be sent accordingly. Should any parties have questions or concerns, please contact the Tribunal. Yours sincerely,
Sent By	Hayley B[redacted]
Date	21/08/2025
Time	2:53PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

08/09/2025 - Direction/Order

Email

Email Details

From	brisbane.registry@art.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Member Support Officer - Legal
Standard Text	
Subject Description	Direction/Order
To	
CC	

karlie.dickinson@ags.gov.au
reid.simon4@gmail.com
vida_reid@yahoo.com

Subject	2023/3361 - 2023/3363 - 2023/4494 - RE Reid / Superior Care Group Pty Ltd and Commissioner of the NDIS Quality and Safeguards Commission - Direction/Order
Message	Dear Parties, Please find attached a copy of a Direction in this matter. Please note that 2023/3361 but this direction also refers to the linked cases of 2023/3363 and 2023/4494. Yours sincerely
Sent By	Hayley B[redacted]
Date	08/09/2025
Time	4:06PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Attached Date	Document Name
08/09/2025	Reid and Foward Focused Group Pty Ltd and the Commisioner of the NDIS Quality and Safeguards Commission - Directions 8 September 2025.pdf

Administrative Review Tribunal

ADMINISTRATIVE REVIEW TRIBUNAL
BRISBANE REGISTRY

) No: 2023/3361
) No: 2023/3363
) No: 2023/4494

Re: VIDA REID
Applicant

And: COMMISSIONER OF THE NDIS SAFEGUARDS COMMISSION
Respondent

Re: SIMON REID
Applicant

And: COMMISSIONER OF THE NDIS SAFEGUARDS COMMISSION
Respondent

Re: FORWARD FOCUS GROUP PTY LTD
Applicant

And: COMMISSIONER OF THE NDIS SAFEGUARDS COMMISSION
Respondent

DIRECTIONS

TRIBUNAL: Deputy President K McMillan KC

DATE: 8 September 2025

PLACE: Brisbane

1. By 4pm on Wednesday 10 September 2025, the applicant, Mr Simon Reid, file and serve any submissions in response to the application of the applicant Vida Reid lodged and served on 16 August 2025.

2. By 4pm on Wednesday 17 September 2025, the Respondent file and serve any submissions in response to the application of the applicant Vida Reid lodged and served on 16 August 2025 and any submissions lodged by the applicant Simon Reid, pursuant to Order 1 above.

3. By 4pm on Tuesday 23 September 2025, the applicant Vida Reid file and serve any further submissions in reply to submissions lodged pursuant to Orders 1 and 2 above.

4. Thereafter, the application made by the applicant Vida Reid on 16 August 2025 and any subsequent submissions received in accordance with Orders 1, 2 and 3 above to be determined on the papers.

……..……..[SGD]……..……...
Deputy President K McMillan KC

NOTES TO DIRECTION

1. If you do not comply with a direction, the Tribunal will list the application for a directions hearing. You will be required to attend the directions hearing and explain why you have not complied with the direction.

2. The Tribunal can dismiss an application if an Applicant fails within a reasonable time to comply with a direction made by the Tribunal. This power is set out in section 100 of the *Administrative Review Tribunal Act 2024*. If you are the Applicant and you fail to comply with a direction, you may also be asked to explain at the directions hearing why your application should not be dismissed.

3. If a party fails to comply with this direction, the Tribunal will not necessarily decide to adjourn, or delay the listing of, an alternative dispute resolution process or hearing.

4. Where the Tribunal has the power to award or recommend the payment of costs, failure by a party to comply with this direction may be taken into account in making a decision relating to costs.

5. If you do not believe you will be able to comply with a timeframe or any other aspect of this direction, you must make a request to the Tribunal for an extension of time to comply or for a variation of the direction. You should make the request well before the date by which you are required to comply with the direction.

   Unless the Tribunal allows otherwise, the request must:

   a. be in writing
   b. explain the reasons for requesting more time or for the variation, and
   c. tell us whether or not the other party agrees to the request.

The Tribunal may ask you or the other party for more information, list a directions hearing or decide the request on the papers.

6. If you have been directed to give the Tribunal a Hearing Certificate, the Tribunal may list your application for hearing without further consultation if you do not provide the Hearing Certificate by the specified date.

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

20/01/2026 - Listing Notice

Email

Email Details

From	brisbane.registry@art.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Member Support Officer - Legal
Standard Text	
Subject Description	Listing Notice
To	
CC	

reid.simon4@gmail.com
karlie.dickinson@ags.gov.au
vida_reid@yahoo.com

s47E(d) [redacted] art.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - Listing Notice
Message	Dear Parties, Please find attached a Listing Notice in this matter enclosing details of the upcoming interlocutory hearing. Generally listings information is publicly available. Ms Reid, please note that the Tribunal will ensure that a Farsi interpreter will be on standby should you wish for communications to be translated at any point in the hearing. Yours sincerely
Sent By	Hayley B[redacted]
Date	20/01/2026
Time	5:57PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

Attached Date	Document Name
20/01/2026	2023.3361 - 2023.3363 - 2023.4494 - Reid and FFG v NDIA QSC listing notice.pdf

Administrative Review Tribunal

Case Ref: 2023/3361
2023/3363
2023/4494
Your Ref:

Contact Officer: Hayley B

20 January 2026

Dear Parties,

APPLICANT: Vida Reid
APPLICANT: Simon Reid / Forward Focus Group Pty Ltd
RESPONDENT: Commissioner of the NDIS Quality and Safeguards Commission

This application has been listed as shown below:

Interlocutory Hearing - Joinder application
Date: Friday, 20 March 2026
Time: 11:00AM (AEST) / 9:00AM (AWST)
Location: Microsoft Teams

Microsoft Teams meeting
Join: https://teams.microsoft.com/meet/48826794777901?p=L3oPYVxtRjjV9Xft9o
Meeting ID: 488 267 947 779 01
Passcode: M6fi28zD

What happens if you do not attend?

If you cannot attend at the time listed above, you should advise us as soon as possible.

If an applicant or an applicant's representative fails to attend, the Tribunal may dismiss the application under section 99 of the Administrative Review Tribunal Act

Yours sincerely

Hayley B
For the Registrar

Telephone: 1800 228 333
Email: brisbane.registry@art.gov.au

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

17/03/2026 - General Correspondence

Email

Email Details

From	brisbane.registry@art.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Member Support Officer - Legal
Standard Text	
Subject Description	General Correspondence
To	
CC	

reid.simon4@gmail.com
craig.land@ags.gov.au
karlie.dickinson@ags.gov.au
vida_reid@yahoo.com

s47E(d) [redacted] art.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear Parties, The Tribunal received correspondence on 9 March 2026 from Ms Vida Reid advising that she is withdrawing the interlocutory application in matter 2023/3361. I further note that correspondence from Mr Simon Reid confirms that the interlocutory application is unrelated to matters 2023/3363 and 2023/4494. Given the withdrawal, the Tribunal seeks the views of the parties as to whether the hearing on Friday 20 March 2025 to hear the interlocutory application to sever the joint proceedings for matters 2023/3361 and 2023/3363 be heard on the papers. Pending the disposal of that application, the above matters will be listed for a substantive hearing. Should parties have any questions or concerns, please contact the Tribunal by way of reply email. Yours sincerely,
Sent By	Hayley B[redacted]
Date	17/03/2026
Time	1:13PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

22/04/2026 - General Correspondence

Email

Email Details

From	brisbane.registry@art.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Member Support Officer - Legal
Standard Text	
Subject Description	General Correspondence
To	
CC	

craig.land@ags.gov.au
reid.simon4@gmail.com
vida_reid@yahoo.com

karlie.dickinson@ags.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear Parties, I refer to Simon Reid's email dated 6 April 2026 and wish to advise that the decision regarding the severance application remains under consideration. The Tribunal acknowledges that there have been several submissions made in relation to this application and for the avoidance of doubt wishes to confirm that the following submissions are being considered in the decision: - Vida Reid Short Direction Submission dated 8 March 2026 - Vida Reid Reply dated 19 March 2026 - Simon Reid Short Directions Submission dated 6 March 2026 - Simon Reid Reply Dated 19 MArch 2026 - Respondent Submission to Stay dated 17 September 2025 - Respondent Supplementary Submission dated 19 March 2026 I confirm that the above submissions are in support of Ms Vida Reid's Application to Sever filed 16 August 2025. Should parties have any concerns to the above, please contact the Tribunal by way of reply email. Yours sincerely,
Sent By	Hayley B[redacted]
Date	22/04/2026
Time	3:04PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

12/05/2026 - General Correspondence

Email

Email Details

From	brisbane.registry@art.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Member Support Officer - Legal
Standard Text	
Subject Description	General Correspondence
To	
CC	

reid.simon4@gmail.com
craig.land@ags.gov.au
vida_reid@yahoo.com

s47E(d) art.gov.au
karlie.dickinson@ags.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear parties, I refer to the correspondence that was sent to parties on 22 April 2026 seeking confirmation on the submissions filed in relation to the severence application. The Tribunal acknowledges that there have been several submissions made in relation to this application and for the avoidance of doubt seeks parties to confirm that the following submissions have been filed. - Vida Reid Short Direction Submission dated 8 March 2026 - Vida Reid Reply dated 19 March 2026 - Simon Reid Short Directions Submission dated 6 March 2026 - Simon Reid Reply Dated 19 MArch 2026 - Respondent Submission to Stay dated 17 September 2025 - Respondent Supplementary Submission dated 19 March 2026 I confirm that the above submissions are in support of Ms Vida Reid's Application to Sever filed 16 August 2025. I would be grateful if parties could provide confirmation by COB on 13 May 2026. Yours sincerely,
Sent By	Hayley B[s47E]
Date	12/05/2026
Time	4:21PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)

AAT Tribunal Record and Case System

2023/3361 RE Reid and Commissioner of the NDIS Quality and Safeguards Commission

19/05/2026 - General Correspondence

Email

Email Details

From	brisbane.registry@art.gov.au
Security Classification	SEC=OFFICIAL: Sensitive, ACCESS=Personal-Privacy
Position	Member Support Officer - Legal
Standard Text	
Subject Description	General Correspondence
To	
CC	

Isabelle.Macdonald@ags.gov.au
Craig.Land@ags.gov.au
Karlie.Dickinson@ags.gov.au
reid.simon4@gmail.com
vida_reid@yahoo.com

legal@ndiscommission.gov.au

Subject	2023/3361 - RE Reid and Commissioner of the NDIS Quality and Safeguards Commission - General Correspondence
Message	Dear Parties, The Tribunal wishes to advise that the recent application for non-disclosure orders filed by the Respondent in the above matter has been put before Deputy President for consideration. Parties will receive correspondence from the Tribunal of the outcome in due course. Yours sincerely,
Sent By	Hayley B[redacted]
Date	19/05/2026
Time	4:48PM

Attachments

Documents Generated in TRACS

Received Documents in TRACS

Written Reasons for Decision

Other Documents (not saved in TRACS)